

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



October 1, 2018

Honorable Richard M. King
Judge of the Superior Court
County of Orange
8141 13th Street
Westminster, CA 92683

Re: Delgado, Isaac Anthony
CDC No.: F14206
Case No.: 04WF1875
Date of Sentence: 1/17/2006

Dear Honorable Richard M. King:

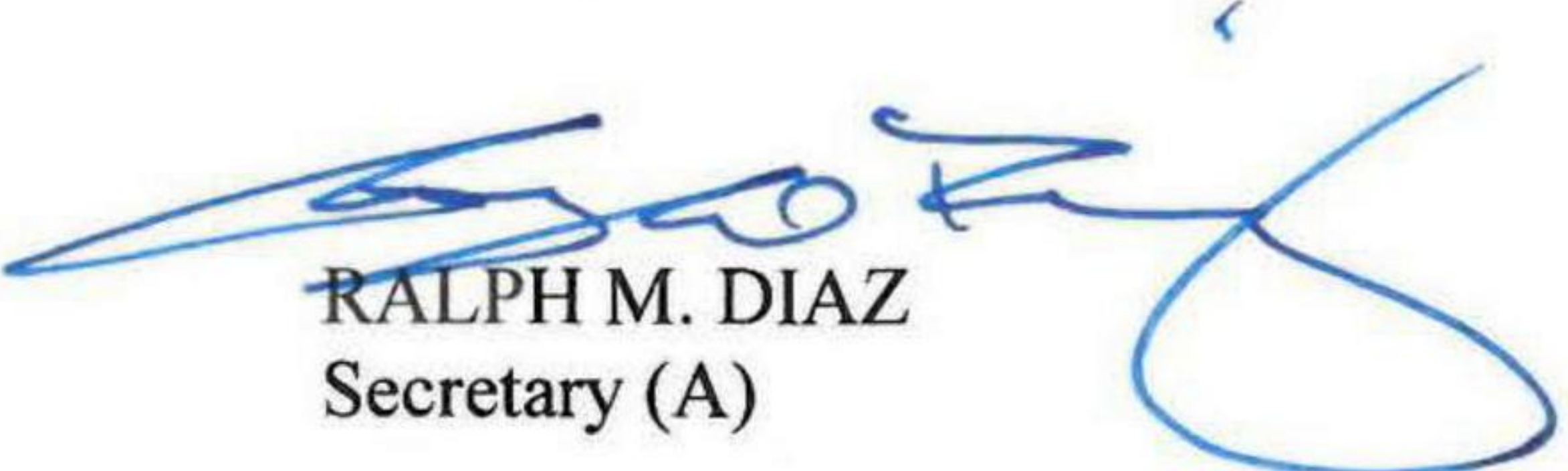
The purpose of this letter is to provide the court with authority to resentence Isaac Anthony Delgado pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Delgado was sentenced in 2006, and was convicted of section 245, subdivision (a)(1), Assault w/deadly weapon. The trial court sentenced inmate Delgado on 1/17/2006. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Delgado's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Delgado's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,


RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Charles Margines, Orange County Presiding Judge
Orange District Attorney
Private Attorney

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
(NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED)

CR-290

☒ SUPERIOR COURT OF CALIFORNIA, COUNTY OF: <u>Orange</u>		FILED SUPERIOR COURT OF CALIFORNIA COUNTY OF ORANGE CENTRAL JUSTICE CENTER DEC 14 2016 DAVID H. YAMASAKI, Clerk of the Court BY: <u>AMY BUI</u> DEPUTY
☐ MUNICIPAL BRANCH OR JUDICIAL DISTRICT:		
PEOPLE OF THE STATE OF CALIFORNIA vs DEFENDANT: Delgado, Isaac Anthony 6284324	DOB: 01-07-87 04WF1875 ✓ -A	
AKA: Delgado, Isaac CI# A24491302	-B -C -D	
BOOKING# ☐ NOT PRESENT ☒ AMENDED ABSTRACT		
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGEMENT		
DATE OF HEARING 01-17-06	DEPT. NO. C42	JUDGE Richard M. King ✓
CLERK Tina Ebbert	REPORTER Jacqueline F. Vigil	PROBATION NO. OR PROBATION OFFICER
COUNSEL FOR PEOPLE Cynthia Herrera		COUNSEL FOR DEFENDANT Gary Appel, Retained Attorney ✓ ☐ APPTD

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment

0 (number of pages attached)

CNT.	CODE	SECTION NO.	CRIME	YEAR CRIME CMMTD	DATE OF CONVICTION (MO/DATE/YEAR)	CONVICTED BY			TERM (L/M/U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (refer to item 5)	654 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS	MOS.
2A	PC	12020(a)(4)	Possess/Manf./Import/Sal	04	10/24/05	X			U	X						(03	00)
4A	PC	245(a)(1)	Assault w/deadly weapon	04	10/24/05	X			U							04	00

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or 'S' for stayed. DO NOT LIST enhancements stricken under PC 1385.

CNT.	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
4A	12022.7(a) PC	03Y00M	186.22(b)(1) PC	10Y00M					13 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or 'S' for stayed. DO NOT LIST enhancements stricken under PC 1385.

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL

4. ☐ Defendant was sentenced pursuant to PC 667(b)-(i) or PC 1170.12 (two strikes).

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES: 00 00

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME: 17 00

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

(Continued on reverse)

PEOPLE OF THE STATE OF CALIFORNIA vs.
 DEFENDANT: Delgado, Isaac Anthony 6284324

04WF1875	-A	-B	-C	-D
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9 FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

- a. RESTITUTION FINE of: \$ 200.00 per PC 1202.4(b) forthwith per PC 2085.5.
 b. RESTITUTION FINE of: \$ 200.00 per PC 1202.45 suspended unless parole is revoked.
 c. RESTITUTION of: \$ per PC 1202.4(f) to ☐ victim(s) ☐ Restitution Fund
 (* List victim name(s) if known and amount breakdown in item 11, below.)
 (1) ☐ Amount to be determined.
 (2) ☐ Interest rate of: % (not to be exceed 10% per PC 1204.4(f)(3)(F)).
 d. ☐ LAB FEE of: \$ for counts: per H&SC 11372.5(a).
 e. ☐ DRUG PROGRAM FEE of per H&SC 11372.7(a).
 f. ☐ FINE of: \$ per PC 1202.5.

10. TESTING

- a. ☐ AIDS pursuant to ☐ PC 1202.1 ☐ other (specify):
 b. ☒ DNA pursuant to ☐ PC 290.2 ☒ other (specify): PC 296

11. Other orders (specify):

- a. Total term to be served in State Prison is 17 Years. Count(s) 3 DISMISSED - Other reason
 Count(s) 1 DISMISSED - Motion of People.
 Pay \$20.00 for Security Fee pursuant to Penal Code 1465.8.
 Court orders all fees payable through the Department of Corrections.

12. Execution of sentence imposed

- a. ☒ at initial sentencing hearing. d. ☐ at resentencing per recall of commitment. (PC 1170(d).)
 b. ☐ at resentencing per decision on appeal. e. ☒ other (specify): Chambers Work
 c. ☐ after revocation of probation

13. CREDIT FOR TIME SERVED

CASE NUMBER	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
04WF1875 - A	651	566	85 ☐ 4019 ☒ 2933.1
- B			☐ 4019 ☐ 2933.1
- C			☐ 4019 ☐ 2933.1
- D			☐ 4019 ☐ 2933.1
DATE SENTENCE PRONOUNCED 01/17/06	SERVED TIME IN STATE INSTITUTION ☐ DMH ☐ CDC ☐ CRC		

14. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays

To be delivered to ☒ the reception center designated by the director of the California Department of Corrections.
☐ other (specify):

I hereby certify the foregoing to be correct and true to the judgment made in this action.

DEPUTY'S SIGNATURE: A. Bui DATE: DEC 14, 2016

